

25STCV17696 25STCV17696

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV17696 Hearing Date: June 30, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

30, 2026 TRIAL DATE: June 5, 2028

CASE: Veritext, LLC v. Nancy Anfanger

CASE NO.: 25STCV17696

DEFENDANT'S MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES

- GENERAL, SET ONE, FROM PLAINTIFF VERITEXT, LLC

doing business as ATKINSON BAKER, A VERITEXT COMPANY

MOVING

PARTY: Defendant Nancy B. Anfanger, in

pro per

RESPONDING

PARTY: No opposition

I. INTRODUCTION

On June 4, 2026,

Defendant,

Nancy B. Anfanger, filed this motion to compel responses from Plaintiff,

Veritext, LLC, to Defendant's Form Interrogatories – General, Set One. Defendant requests sanctions against Plaintiff and its counsel of record in the sum of \$1,500. Defendant is a self-represented litigant.

At the time of this writing, no opposition has been filed.

II. LEGAL STANDARD

If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2030.290(b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., §§ 2030.290(a).) A party moving to compel discovery responses under these statutory provisions is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., § 2030.290(b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that “meet and confer” requirement “did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party’s failure to respond ‘within the statutorily permitted time’”].) ¶¶¶¶¶

Monetary Sanctions ¶

¶

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.) ¶¶¶¶¶

¶¶¶¶¶

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion

be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction. 22222

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If the court finds that a party has unsuccessfully made or opposed a motion to compel, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” 2 (Code Civ. Proc., §§ 2030.290(c).) 222

Sanctions may also be imposed against counsel if a party seeking sanctions against an attorney offers sufficient evidence of a misuse of the discovery process, and the attorney fails to demonstrate that he or she did not recommend that conduct. (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 81 (Kwan Software).) 2

III. DISCUSSION

Defendant moves the court for an order compelling Plaintiff to provide responses to Plaintiff’s Form Interrogatories-General, Set One.

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It is undisputed that Defendant properly served Plaintiff with the at-issue discovery requests on April 16, 2026. 2 To date, Plaintiff has not served responses. 2 Accordingly, all objections to the discovery requests are waived. Defendant is entitled to an order compelling responses to the interrogatories. 22

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2 Monetary Sanctions 22

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Defendant request sanctions against Plaintiff and its counsel. 2 Given the court’s ruling, sanctions are warranted. 2 Pursuant to Kwan Software, imposition of monetary sanctions against counsel is also proper unless counsel shows that he or she did not counsel the discovery abuse. 2 (Kwan

Software, supra, 58 Cal.App.5th at p. 81.) Plaintiff's counsel does not meet their burden. The court will impose sanctions against Plaintiff and her counsel. Because Defendant is self-represented and did not include any statement regarding the costs she incurred in bringing this motion (see Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1016-1017, 1020 [holding that pro se litigants, including pro se lawyers, who have prevailed on motions to compel responses to requests for production of documents, cannot recover attorney fees as a discovery sanction, but may recover reasonable expenses that were incurred, such as photocopying and computer-assisted legal research]), the court imposes sanctions in the amount of \$100 against Plaintiff and its counsel of record.

IV. CONCLUSION

The unopposed motion is GRANTED. Plaintiff is ordered to serve verified, objection-free responses to Defendant's Form Interrogatories-General, Set One, within 30 days of this order.

Defendant's request for sanctions is GRANTED. Plaintiff and its counsel of record is ordered to pay sanctions in the amount of \$100 to Defendant within 30 days of this order.

Defendant to give notice, unless waived.

Dated: June 30, 2026

Brock T. Hammond

Judge of the Superior Court